

Legal Feasibility Study Report DnDiscord

LEGAL FEASIBILITY STUDY REPORT

DnDiscord MVP - T-LAW-900

Project: DnDiscord - Virtual Tabletop for Discord

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1. EXECUTIVE SUMMARY

This Legal Feasibility Study evaluates the regulatory and legal requirements for launching DnDiscord MVP in France and the European Union. The study analyzes compliance obligations across six key areas: RGPD (GDPR), Discord API terms, cookies/trackers, intellectual property (D&D content licensing), French gaming regulations, and data security.

Key Finding: DnDiscord MVP is **legally feasible** provided critical compliance requirements are implemented before launch.

Critical Requirements:

- RGPD compliance with age verification (15+ in France) and parental consent mechanism
- Discord Developer Terms compliance including content moderation
- Use of SRD 5.2 content only under CC-BY-4.0 license with proper attribution
- EU-based hosting infrastructure
- Privacy policy and terms of service in French

Risk Level: Medium-High (primarily due to RGPD obligations for minors' data)

2. PROJECT DESCRIPTION

2.1 Project Overview

DnDiscord is a web-based virtual tabletop application for playing tabletop roleplaying games, deployed as a Discord Activity (embedded iframe). The application enables real-time multiplayer gameplay with 3D visualization.

2.2 Technical Stack

Layer	Technology
Frontend	SolidJS, TypeScript, BabylonJS, Tailwind CSS
Backend	ASP.NET Core (.NET 9.0), SignalR
Database	PostgreSQL
Infrastructure	Docker, EU hosting
Authentication	Discord OAuth, JWT

2.3 Target Users

- **Primary audience:** Discord users aged 13+ in France and EU
- **Geographic scope:** France (primary), European Union
- **Monetization:** None in MVP phase

2.4 Data Collected

Data Type	Source	Purpose
Discord user ID	Discord OAuth	Authentication
Username	Discord OAuth	Display
Avatar	Discord OAuth	Display
Character data	User input	Core functionality
Game state	Application	Core functionality
Chat logs	Real-time communication	Gameplay

3. LEGAL ASPECTS IDENTIFIED

3.1 RGPD (GDPR) Compliance

Applicable Regulations:

- Règlement (UE) 2016/679 (RGPD)
- Loi n° 78-17 du 6 janvier 1978 (Informatique et Libertés)
- Article 45 Loi Informatique et Libertés (age of consent: 15 years in France)

3.1.1 Key Risks

Risk	Severity	Description
Minors' data processing	HIGH	Users 13-14 years require parental consent in France
Missing DPIA	HIGH	Gaming applications targeting minors require Data Protection Impact Assessment
Data retention undefined	MEDIUM	No clear retention policy defined
Cross-border transfers	MEDIUM	If using non-EU infrastructure

3.1.2 Legal Obligations

Age of Digital Consent (Article 8 RGPD, Article 45 LIL):

- France has set the age of digital consent at **15 years**
- Users under 15 require parental consent for data processing
- CNIL confirms: "Pour les mineurs de moins de 15 ans, le consentement au traitement de données personnelles doit être donné par le mineur et son représentant"

Data Minimization (Article 5.1.c RGPD):

- Collect only strictly necessary data
- CNIL priority 2024: "vérifier le respect des mécanismes de contrôle de l'âge, des mesures de sécurité adéquates, et le principe de minimisation des données"

Transparency (Articles 13-14 RGPD):

- Privacy policy in French (primary language)

- Clear information before data collection
- Identity of data controller

User Rights (Articles 15-22 RGPD):

- Right to access, rectification, erasure, portability
- Right to object to processing
- Easy-to-use mechanisms for minors

DPIA Requirement (Article 35 RGPD):

- Required for gaming applications involving minors
- Must assess risks to minors' privacy and wellbeing

3.1.3 Mitigation Strategy

IMMEDIATE ACTIONS (Pre-Launch):

- ☐ Draft Privacy Policy (French + English)
- ☐ Implement age verification at first access
- ☐ For users 13-14: parental consent mechanism
- ☐ For users 15+: explicit consent checkbox
- ☐ Conduct DPIA using CNIL methodology
- ☐ Create Register of Processing Activities (Article 30)
- ☐ Define data retention policy (recommended: 2 years inactive)

TECHNICAL IMPLEMENTATION:

- ☐ Database: user_consent table (timestamp, IP, user agent, choices)
- ☐ API: GET /api/users/me/data (GDPR data export)
- ☐ API: DELETE /api/users/me (account deletion)
- ☐ Privacy policy accessible at /privacy
- ☐ Consent management dashboard

3.2 Discord Developer Terms

Applicable Terms:

- Discord Developer Terms of Service (July 8, 2024)
- Discord Developer Policy
- Discord Terms of Service

3.2.1 Key Obligations

Legal Compliance (Section 4, Developer Terms):

> "You and your Application will comply with all applicable laws and regulations"

This includes RGPD, French gaming laws, and intellectual property laws.

Age Restrictions (Developer Policy §9):

> "Do not direct your Application to people who are under the age of 13 or the minimum age required by the laws in their applicable countries."

User Privacy (Section 5, Developer Terms):

- Implement "industry standard security measures"
- Protect against unauthorized access
- Comply with privacy laws (GDPR, CCPA, etc.)

API Data Usage (Developer Policy §15):

> "Do not use API Data for any purpose outside of what is necessary to provide your stated functionality."

Content Moderation (Developer Policy §1):

- Developers must provide reporting mechanism
- Must review user reports

Monetization (October 7, 2024):

- If monetization planned, must use Discord's Premium Apps
- Prices must be equal or lower than external options
- **NOT applicable to MVP** (no monetization)

3.2.2 Mitigation Strategy

- ☐ Add age rating to Discord Activity metadata: "Teen (13+)"
- ☐ Implement in-app "Report Issue" button
- ☐ Create moderation dashboard for reviewing reports
- ☐ Privacy policy states: Discord data used for authentication only
- ☐ Store API credentials securely (environment variables)
- ☐ Implement rate limiting on API calls
- ☐ Review Discord Developer Portal updates quarterly

3.3 Cookies & Trackers (ePrivacy)

Applicable Regulations:

- Directive 2002/58/CE (ePrivacy)
- Article 82 Loi Informatique et Libertés
- CNIL Lignes directrices (September 2020, updated January 2024)

3.3.1 Consent Requirements

CNIL Guidelines (2024):

- All non-essential trackers require explicit, prior consent
- "Accept All" must have equivalent "Reject All" button
- Consent must be freely given, specific, informed, unambiguous
- Must be as easy to refuse as to accept

3.3.2 DnDiscord MVP Tracker Analysis

Tracker Type	Purpose	Consent Required?
ASP.NET Session Cookie	Authentication	✗ NO (exempt - essential)
SignalR Connection Token	Real-time communication	✗ NO (exempt - essential)
LocalStorage (game state)	Save game progress	✗ NO (exempt - essential)
Analytics (if implemented)	Usage statistics	✓ YES

3.3.3 Mitigation Strategy

MVP APPROACH (Recommended):

- ☐ Use ONLY essential cookies (session, SignalR)
- ☐ NO analytics in MVP phase
- ☐ NO third-party trackers (Google Analytics, etc.)
- ☐ Document all cookies in Privacy Policy

IF ANALYTICS NEEDED (Post-MVP):

- ☐ Use Matomo self-hosted with CNIL-exempt configuration
 - No cross-site tracking
 - No data sharing with third parties
 - IP anonymization
 - Data retention: 13 months maximum
- ☐ OR implement full consent banner (Tarteaucitron.js, Aceptio)

3.4 Intellectual Property - D&D Content

Applicable Licenses:

- Creative Commons CC-BY-4.0 (SRD 5.2)
- Open Game License 1.0a (legacy, SRD 5.1)

3.4.1 SRD 5.2 (Released April 22, 2025)

Wizards of the Coast released System Reference Document 5.2 under **Creative Commons CC-BY-4.0 license**, providing:

“Publishing the core game mechanics of D&D under a Creative Commons license provides a legally binding promise that essential parts of D&D will remain free to use, remix, and build upon. Forever.”

PERMITTED (SRD 5.2 Content):

- ✓ Game mechanics (combat rules, ability scores)
- ✓ Character classes (Fighter, Wizard, Rogue, etc.)

-  Generic monsters (Goblin, Dragon, Skeleton)
-  Equipment lists, spell descriptions
-  Rules expressions and procedures

PROHIBITED (Product Identity):

-  Trademarks: "Dungeons & Dragons", "D&D", "Dungeon Master"
-  Specific settings: Forgotten Realms, Ravenloft, Eberron
-  Unique monsters: Beholder, Mind Flayer, Displacer Beast
-  Named characters: Strahd, Orcus, Tiamat
-  D&D logos, trade dress, official artwork

3.4.2 CC-BY-4.0 Attribution Requirement

Required Attribution Text:

This application uses content from the System Reference Document 5.2 by Wizards of the Coast, available under Creative Commons Attribution 4.0 International License (CC-BY-4.0).
<https://www.dndbeyond.com/srd>

3.4.3 Mitigation Strategy

- ☐ Use SRD 5.2 content exclusively
- ☐ Replace trademarked terms:
 - "Dungeons & Dragons" → "tabletop roleplaying game"
 - "D&D" → "5E" or "d20 system"
 - "Dungeon Master" → "Game Master" (GM)
- ☐ Create original artwork (no WotC illustrations)
- ☐ Use generic monster names or original creatures
- ☐ Include CC-BY-4.0 attribution in footer and About page
- ☐ Maintain list of all SRD content used
- ☐ Do NOT claim "compatible with D&D" or "official D&D product"
- ☐ CAN state: "compatible with 5th Edition rules"

3.5 French Gaming Regulations

Applicable Law:

- Loi n° 2024-449 du 21 mai 2024 (Loi SREN), Articles 40-41

3.5.1 Assessment

Status:  **NOT APPLICABLE TO MVP**

The SREN law regulates "objets numériques monétisables" (monetizable digital objects) including:

- Loot boxes
- In-game purchases
- Real-money transactions

DnDiscord MVP has NO monetization, therefore:

- No age verification (18+) required under SREN
- No ANJ (Autorité Nationale des Jeux) oversight
- No anti-fraud measures required

3.5.2 Future Consideration

If monetization is added post-MVP, a new legal review will be required for SREN compliance.

3.6 Data Security

Applicable Regulations:

- RGPD Article 32 (Security of processing)
- NIS2 Directive (if applicable at scale)

3.6.1 Security Obligations

Article 32 RGPD Requirements:

- Pseudonymization and encryption
- Ongoing confidentiality, integrity, availability
- Regular testing and evaluation
- Incident response plan

Data Breach Notification (Articles 33-34 RGPD):

- Notify CNIL within 72 hours of breach discovery
- Notify affected users if high risk

3.6.2 Mitigation Strategy

Technical Security:

- ☐ HTTPS/TLS for all communications (Let's Encrypt)
- ☐ PostgreSQL: encrypted connections, strong passwords
- ☐ Password hashing: bcrypt or Argon2
- ☐ JWT tokens: short expiration (15 min access, 7 day refresh)
- ☐ Docker: non-root user, minimal attack surface
- ☐ Regular security updates

Infrastructure:

- ☐ Host in EU (France or Germany)
- ☐ Recommended providers: OVH, Scaleway, Hetzner

- ☐ Daily PostgreSQL backups, 30-day retention
- ☐ Security event logging (Serilog + Seq)

Incident Response:

- ☐ Document breach response procedure
- ☐ Designate security contact: security@[domain]
- ☐ Maintain incident log template
- ☐ CNIL notification form ready

4. RISK ASSESSMENT MATRIX

Domain	Risk Level	Impact	Probability	Mitigation Priority
RGPD - Minors' Data	 HIGH	€20M or 4% revenue	Medium	CRITICAL
RGPD - Missing DPIA	 HIGH	Administrative sanction	High	CRITICAL
Discord API Violation	 MEDIUM	Application removal	Low	HIGH
IP Infringement (D&D)	 LOW	Cease & desist	Low	MEDIUM
Cookie Non-Compliance	 MEDIUM	CNIL sanction	Medium	HIGH
Data Breach	 MEDIUM	Reputation + fines	Low	HIGH
Gaming Regulations	 NEGLIGIBLE	N/A (no monetization)	N/A	N/A

Risk Explanation

HIGH RISK - RGPD Non-Compliance:

- CNIL has made minors' data protection a **2024 priority**
- Fines up to €20 million or 4% of global revenue
- Reputational damage significant for gaming platforms

MEDIUM RISK - Discord API:

- Violation could result in application removal from Discord
- Loss of primary distribution channel
- Low probability if compliance measures implemented

LOW RISK - Intellectual Property:

- SRD 5.2 under CC-BY-4.0 provides clear legal framework

- Risk only if using prohibited content (Beholder, Mind Flayer, etc.)
- Mitigation straightforward: use SRD content only

5. COMPLIANCE ROADMAP

Phase 1: PRE-LAUNCH (Blocking)

Timeline: 2-4 weeks before launch

Task	Owner	Status
Draft Privacy Policy (FR + EN)	Legal/Dev	☐
Draft Terms of Service	Legal/Dev	☐
Implement age verification (15+)	Dev	☐
Implement parental consent (13-14)	Dev	☐
Configure essential cookies only	Dev	☐
Add CC-BY-4.0 attribution	Dev	☐
Remove D&D trademarks from UI	Dev	☐
Conduct DPIA	DPO/Legal	☐
Create Register of Processing	DPO	☐
Set up EU hosting	DevOps	☐
Implement HTTPS/TLS	DevOps	☐

Phase 2: LAUNCH (Required)

Timeline: At launch

Task	Owner	Status
Deploy Privacy Policy at /privacy	Dev	☐
Deploy Terms of Service at /terms	Dev	☐
Add "Report Issue" button	Dev	☐
Implement GDPR data export	Dev	☐
Implement account deletion	Dev	☐
Set up security monitoring	DevOps	☐
Document data retention policy	DPO	☐
Create breach response procedure	DPO	☐

Phase 3: POST-LAUNCH (Enhancement)

Timeline: 1-3 months after launch

Task	Owner	Status
Implement consent banner (if analytics)	Dev	☐
Add user consent dashboard	Dev	☐
Conduct security audit	External	☐
Review Discord policy updates	Legal	☐
Monitor CNIL guidance	Legal	☐
Evaluate DPO appointment	Management	☐

6. ESTIMATED COSTS & RESOURCES

6.1 Financial Costs

Item	Estimated Cost	Timeline
Legal document drafting (Privacy Policy, ToS)	€500 - €1,500	1-2 weeks
DPIA consultation (optional external)	€1,000 - €3,000	1 week
EU hosting (OVH/Scaleway)	€20 - €50/month	Ongoing
SSL certificates (Let's Encrypt)	€0 (free)	-
Cookie consent solution (if needed)	€0 - €300/month	-
Security audit (post-launch)	€2,000 - €5,000	1-2 weeks
TOTAL INITIAL INVESTMENT	€1,500 - €4,500	2-4 weeks

6.2 Internal Resources

Resource	Estimated Hours
Developer time (GDPR features, security)	40-60 hours
Legal review (documents, compliance)	10-20 hours
Ongoing maintenance	2-4 hours/month

7. CONCLUSION & RECOMMENDATION

7.1 Legal Feasibility Assessment

Criterion	Status
RGPD Compliance	✅ Feasible with conditions
Discord API Compliance	✅ Feasible
IP/Licensing Compliance	✅ Feasible
Cookie/Tracker Compliance	✅ Feasible
Gaming Regulations	✅ Not applicable (MVP)

Criterion	Status
Data Security	✅ Feasible

7.2 Final Recommendation

APPROVED WITH CONDITIONS ✅

DnDiscord MVP is **legally feasible** in France and the European Union, provided the following conditions are met before launch:

CRITICAL REQUIREMENTS:

1. RGD Compliance:

- Privacy Policy (French + English)
- Age verification (15+ for France)
- Parental consent mechanism (13-14 years)
- DPIA conducted and documented
- User rights implementation (access, deletion, export)

2. Discord API Compliance:

- Age restrictions respected (13+ minimum)
- Content moderation mechanism
- API usage within documented limits

3. Intellectual Property:

- Use SRD 5.2 content exclusively
- Remove all D&D trademarks
- CC-BY-4.0 attribution displayed

4. Infrastructure:

- EU-based hosting (France recommended)
- HTTPS/TLS encryption
- Security monitoring in place

7.3 Ongoing Obligations

- Monitor Discord Developer Policy updates (quarterly)
- Review CNIL guidance for gaming sector
- Update Privacy Policy when features change
- Conduct annual DPIA review

- Maintain Register of Processing Activities

7.4 Risk Summary

Risk Category	Assessment
High risk	RGPD non-compliance (fines up to 4% revenue or €20M)
Medium risk	Discord API violation (application removal)
Low risk	IP infringement (if SRD content used correctly)
Negligible	Gaming regulations (no monetization in MVP)

8. SOURCES & REFERENCES

8.1 RGPD / Data Protection

- Règlement (UE) 2016/679 (RGPD), 27 avril 2016
- Loi n° 78-17 du 6 janvier 1978 (Informatique et Libertés)
- CNIL, "Les contrôles de la CNIL en 2024 : données des mineurs...", 2024
 - <https://www.cnil.fr/fr/les-contrôles-de-la-cnil-en-2024-donnees-des-mineurs-jeux-olympiques-droit-dacces-et-tickets-de>
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8.2 Cookies & Trackers

- CNIL, Lignes directrices "cookies et autres traceurs", September 17, 2020
- CNIL, Recommandation "cookies et autres traceurs", September 17, 2020
- CNIL, "Nouvelles règles pour les cookies", February 20, 2024

- Article 82, Loi Informatique et Libertés

8.3 Discord Developer Terms

- Discord Developer Terms of Service, July 8, 2024
 - <https://support-dev.discord.com/hc/en-us/articles/8562894815383-Discord-Developer-Terms-of-Service>
- Discord Developer Policy
 - <https://support-dev.discord.com/hc/en-us/articles/8563934450327-Discord-Developer-Policy>
- Discord Terms of Service, April 2024
 - <https://discord.com/terms>

8.4 Intellectual Property (D&D)

- Wizards of the Coast, System Reference Document 5.2 (CC-BY-4.0), April 22, 2025
 - <https://www.dndbeyond.com/srd>
- D&D Beyond, "You Can Now Publish Your Own Creations Using the New Core Rules"
 - <https://www.dndbeyond.com/posts/1949-you-can-now-publish-your-own-creations-using-the>
- Creative Commons CC-BY-4.0 License
 - <https://creativecommons.org/licenses/by/4.0/>
- Roll20, "D&D SRD 5.2 – What You Need to Know"
 - <https://pages.roll20.net/dnd-srd>

8.5 French Gaming Law

- Loi n° 2024-449 du 21 mai 2024 (SREN), Articles 40-41

DOCUMENT CONTROL

Version	Date	Author	Changes
1.0	December 7, 2025	Legal Team	Initial version

END OF DOCUMENT